

26SMCP00219 26SMCP00219

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is a motion brought by petitioner to quash a subpoena. Petitioner was involved in an accident and claims to be eligible for insurance benefits under the underinsured motorist coverage with the carrier. Petitioner began this action in aid of the arbitration to establish the coverage.

The way it works is that under Insurance Code section 11580, where this sort of claim is made, it will be determined by arbitration. But in aid of that, a petitioner can open a Superior Court file in order to use the court to enable discovery. The respondent is also entitled to use court process for that purpose. Respondent has issued a subpoena to another carrier seeking the production of the claim files for three separate losses occurring over a two month period in 2022. The records sought include medical bills, medical records, medical reports, earning information, settlements, and similar materials. Petitioner contends that this is overbroad but that attempts to work with respondent to narrow the scope or have the subpoena withdrawn have been unsuccessful, leading to this motion to quash.

The thrust of petitioner's argument is that whatever claims were made back in 2022 have nothing to do with the claim at issue here, given that the incident here took place in 2024.

Petitioner notes that these records likely contain confidential medical information that petitioner has not put at issue in this case. In support, petitioner notes the right to privacy, which is generally waived in a case like this only to the extent that the claimant puts the matter at issue.

In opposition, respondent claims that medical records already obtained in this case concerning the 2024 incident demonstrate that there were several prior accidents involving the same body parts.

Respondent contends that it presently does not have the records

pertaining to those injuries, and that is what it now seeks. Respondent also notes that in discovery to petitioner, petitioner failed to disclose the 2022 accidents but rather disclosed only an earlier accident in 2018.

That has led respondent to be concerned that some of the injuries claimed here actually stem from the 2022 incidents. And even if there is still coverage because the 2024 incident aggravated the injury, respondent argues that it still needs the information. As to overbreadth, respondent claims that petitioner wrongly puts the burden on it to establish that the records involve the same body parts or the like. But respondent contends that is not proper because it does not have any details about those incidents—that is why it seeks discovery. And respondent notes that petitioner has not even alleged that the 2022 information is for different body parts. In reply, plaintiff notes that the subpoena is not narrowly tailored and that it is respondent's burden to do so given petitioner's privacy interests. Further, petitioner states that the injuries in 2022 had all resolved fully well before 2024.

Respondent ought to narrow the subpoena to the body parts at issue in this case. But other than putting that limit on the subpoena, the court believes that the subpoena is proper. Respondent does not need to take petitioner's word for it that everything was done and over shortly after 2022.

The court suspects that this might lead to more discovery, but the court will not borrow trouble by opining on that now. The court also suspects that respondent suspects that there might be more here to explore, but the court will not borrow trouble on that question either.

The motion to quash is therefore GRANTED IN PART AND DENIED IN PART in that the subpoena will be limited to claims that involve the same body parts as are now at issue in the instant case. The sanctions request is DENIED.